

August 31, 2026
Dept. 9
Probate Tentative Rulings

15.	25PR0265	ESTATE OF DAVID Z HILL, JR
PETITION HEARING		

On July 13, 2026, Petitioner, Jacqueline R. Thomas ("Petitioner"), filed a Petition for Removal of Personal Representative and for Appointment of Successor Administrator. On August 17, 2026, Respondent, Lori O'Rourke ("Respondent"), filed an Opposition and a Request for Judicial Notice.

JUDICIAL NOTICE

Respondent requests judicial notice of the following: 1) The Petition to Establish Parental Relationship (Uniform Parentage) filed March 17, 2011; and 2) Notice of Entry of Judgment and Judgment (Uniform Parentage-Custody and Support) filed and entered on May 3, 2011.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Respondent fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Respondent provided Petitioner and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Respondent has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

PETITION FOR REMOVAL

The Notice of Entry of Judgment found Decedent is the father of Aubrey Hill ("Aubrey"). As an heir of the Decedent, Aubrey is entitled to notice of the hearing. Proof of Service of the Notice of Hearing was filed on July 13, 2026, indicating Respondent was served. There is no Proof of Service indicating Aubrey, a minor, whose guardian ad litem is Marcy O'Rourke, was served. Petitioner's request is denied for lack of notice.

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TENTATIVE RULING #15:

PETITION IS DENIED WITHOUT PREJUDICE FOR LACK OF NOTICE. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT AT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.